

Defendant Thomas Knoth moves to compel arbitration and stay this matter in Superior Court. He has submitted proof of a written agreement to submit this matter to arbitration, signed by Plaintiff Jonathan Cotham and Defendant. The Court received no timely opposition.

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, hereinafter "*Pinnacle*," (2012) 55 Cal.4th 223, 236.) In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code, § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

"[A] court, before granting a petition to compel arbitration, must determine the factual issue of 'the existence or validity of the arbitration agreement. In this way, a court's role, though limited, is critical. There is indeed a strong policy in favor of enforcing agreements to arbitrate, but there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate and which no statute has made arbitrable.'" (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.)

Once the party seeking to compel arbitration has alleged the agreement exists, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) As the Court received no opposition, there is no valid rebuttal to the facially valid agreement.

The only complicating matter here is the issue also addressed on calendar contemporaneously with this motion. If Plaintiff is not abandoning this matter, and if Plaintiff satisfies the Court pursuant to the OSC that is issuing on failure to timely serve Defendants, then this matter would at that point properly proceed to arbitration.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is tentatively granted but Defendant is entitled, if he so desires, to have the Court resolve the issues relating to the service of the complaint resolved prior to arbitration. Both parties are ordered to appear at the hearing on March 5, 2026 for Defendant to notify the Court how he would like to proceed.

10. 9:00 AM CASE NUMBER: C25-00838

CASE NAME: SAMUEL GLASMAN VS. TOM NGUYEN

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE: STEPHEN D. MENARD

FILED BY: JLG INDUSTRIES, INC.

TENTATIVE RULING:

Background

On November 4, 2025, Defendant JLG Industries filed Notice of Hearing, through Counsel Mollie Benedict, on Verified Application for Admission of Stephen D. Menard to the Bar of this Court Pro Hac Vice ("Motion"). The Motion was supported by the Verified Application of Stephen D. Menard and the Declaration of Mollie F. Benedict. The Proof of Service shows that service was accomplished via e-mail on November 4, 2025. The Court received a notice of non-opposition from Plaintiff Samuel Glasman and did not receive timely opposition from Defendants Tom Nguyen and Home Depot USA Inc.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel Pro Hac Vice to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Stephen D. Menard declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Menard is an attorney licensed to practice in Massachusetts, Pennsylvania, and New Jersey, and before the Eastern District of Massachusetts, the Eastern District of Pennsylvania, the Eastern District of New Jersey, and the Courts of Appeals for the First and Third District. He is employed by Trabucco & Menard in Plymouth Meeting, Pennsylvania. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted Pro Hac Vice.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is granted. Stephen D. Menard is admitted to appear as Counsel Pro Hac Vice for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 5, 2026.

11. 9:00 AM CASE NUMBER: C25-00838
CASE NAME: SAMUEL GLASMAN VS. TOM NGUYEN
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: JOSEPH P. TRABUCCO III
FILED BY: JLG INDUSTRIES, INC.
TENTATIVE RULING:

Background

On November 4, 2025, Defendant JLG Industries filed Notice of Hearing, through Counsel Mollie Benedict, on Verified Application for Admission of Joseph P. Trabucco III to the Bar of this Court Pro Hac Vice ("Motion"). The Motion was supported by the Verified Application of Joseph P. Trabucco III